

IN RE THE ESTATE OF JAMES ROBERT BELCHER, DECEASED
PR24-00245

First and Final Report of Personal Representative and Waiver of Accounting and Petition for Final Distribution and Waiver of Compensation to Executor and Award of Attorney Fees for Ordinary Statutory Fees and Reimbursement to Personal Representative for Out of Pocket Expenses and Request for Order for Distribution

PREGRANT ORDER

This matter was continued from December 4, 2025, February 25, 2026, and April 2, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since October 2025.

The court on its own motion continues this hearing one final time to July 22, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. A personal representative is required to file an Inventory and Appraisal within four months after letters are first issued to the general representative. (Prob. Code §8800(b).) Letters were issued on August 21, 2024; thus, the Inventory and Appraisal was due by December 21, 2024 but was not filed until February 21, 2025. The delay in filing is unexplained.
2. Petition, item 23: The petition states that the real property was distributed by a deed recorded on April 7, 2025. No court order authorized this distribution. The petitioner shall explain.
3. Petition, item 29: A petition for final distribution must provide the detailed description and value of the estate to be distributed. (Solano County Local Rules, Rule 7.66(b).) Stating the percentages to be distributed to each heir is insufficient.
4. The estate is solvent but illiquid. The petitioner shall explain how the requested attorney fees will be paid from an illiquid estate.
5. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 11601.